IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
COURT - 2

ITEM No.401

CP(CAA)/30(AHM)2023
in
CA(CAA)/56(AHM)2022

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Gemu Valves India Pvt Ltd **.....Applicant**
(Transferee Company)

Order delivered on: 28/02/2024

Coram:

Mrs. Chitra Hankare, Hon'ble Member(J)
Dr. Velamur G Venkata Chalapathy, Hon'ble Member(T)

PRESENT:

For the Applicant : Ms. Dharmishtha Raval, Adv.

ORDER

Following clarifications are sought by the Bench:

The Transferor Company M/s Gembu GEBR Mueller Apparatebau GMBH & Co. KG is the transferor company and is stated that the scheme of arrangement would be subject to laws of Germany. It has established its business in India with the permission of RBI. He is not the petitioner in the matter. Regulatory approval of the RBI under FEMA guidelines may be obtained to be in conformity to approve the scheme (read with Notification No.FEMA 22®/2016-RB dated March 31, 2016 and Master Direction of the RBI. If the scheme is approved, this would tantamount to winding up of the company. The Ld. Counsel may provide clarification by affidavit within 15 days as this would require permission from the regulators both Government and the RBI.

Ld. Counsel for the applicant appeared and stated that only the business of the entity has been transferred and not the unit. She undertook to file clarification by detailed affidavit within one-week.

Order is de-reserved.

List for further consideration on 21.03.2024.

Sd/- Sd/-

DR. V. G. VENKATA CHALAPATHY
MEMBER (TECHNICAL)

CHITRA HANKARE
MEMBER (JUDICIAL)

SS